

## 26VECV02151 26VECV02151

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-08

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Case Number: 26VECV02151 Hearing Date: July 8, 2026 Dept: B

Tentative Ruling

Schrage v. Fierro, Case no. 26VECV02151

Hearing date July 8, 2026

Defendants'

Motion for Judgment on the Pleadings - UNOPPOSED

Plaintiff

Schrage sues defendants Fierro for unlawful detainer. Defendants move for judgment on the pleadings, alleging defective 3-day notice. Plaintiff did not file written opposition.

A

motion for judgment on the pleadings should be granted when, under "the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law." *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216. Code Civ. Proc. §438 permits a party to make a motion for judgment on the pleadings per Code Civ. Proc §438(c)(1)(B) that (i) the court has no jurisdiction; or (ii) the complaint does not state facts sufficient to constitute a cause of action.

Defendants

move for summary judgment, arguing the 3-day notice fails to include an expiration date. See Compl., exh. 2. Both the date of service and expiration date must be included on the face of a 3-day notice for the notice to be valid. *Eshagian v. Cepeda* (2025) 112 Cal. App. 5th 433, 457.

The

court granted summary judgment in defendants' favor in Schrage v. Fierro, case no. 25VECV05223, as plaintiff's 3-day notice failed to include the date served and expiration date. See 3/26/26 Min. Order, case no. 25VECV05223. The 3-day notice in this matter contains the date served, 3/29/26 (See Compl., exh. 2), but fails to list an expiration date. Id.

California

law is clear; failure to strictly comply with the notice requirements of Code Civ. Proc. §1161(2) is fatal to an unlawful detainer action. Eshagian, supra, at 459; Borsuk v. Appellate Division of Superior Court (2015) 242 Cal. App. 4th 607, 609. The 3-day notice is defective as a matter of law. GRANTED.